



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Athen Mores, Planner
Subject: PUDC-24-4 / North Row/ Final Plat
Date: March 11, 2024

Background:

The item for consideration is a *Final Plat*. This is approved by Resolution.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 03/11/2024
- Public Services Committee 03/19/2024
- Final consideration 03/25/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their March 4, 2024 meeting and unanimously voted to recommend the Governing Body approve this application.

The Planning Commission Staff report is attached.

Attachments:

1. Resolution
2. Final Map
3. Planning Commission Staff Report

RESOLUTION NO. _____

ENTITLED: "A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR NORTH ROW, CITY OF CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED AT 4612 VAN BUREN AVE)."

WHEREAS, Brandon Swain, President of 1105 Ashford LLC, has subdivided said land in accordance with the statutes in such cases made and provided;

WHEREAS, Brandon Swain, President of 1105 Ashford LLC, the owner of the above-described land, has caused a subdivision plat of said land to be made, acknowledged, and certified, particularly describing the lots, blocks, easements, and rights-of-way; and

WHEREAS, the above-described subdivision plat has been presented to the City of Cheyenne Planning Commission for consideration; the Planning Commission has recommended that said plat be approved by the Governing Body; and the plat has been duly executed by the Development Office.

NOW, THEREFORE BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, THAT the subdivision described as North Row, Cheyenne, Wyoming, be and the same hereby is approved and confirmed as presented, and that the Mayor and the City Clerk be and are hereby authorized, empowered, and directed to execute said plat, when Community Facility Fees have been paid in full.

PRESENTED, READ AND ADOPTED this _____ day of _____, 2024.

Patrick Collins, Mayor

(SEAL)

ATTEST:

Kristina F. Jones, City Clerk

DEDICATION

Know all persons by these presents that: 1105 ASHFORD LLC, a Wyoming limited liability company, owner in fee simple of the North 132 feet of the East 120 feet of the East 190 feet of the SE¼ of Tract 36, in Hill Heights Addition, a subdivision of part of the South Half of Section 23, Township 14 North, Range 66 West of the 6th P.M., in Laramie County, Wyoming.

Has caused the same to be Surveyed, Vacated, and Replatted to be known as, North Row, and does hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires.

by: Brandon Swain, President for 1105 ASHFORD LLC, a Wyoming limited liability company.

ACKNOWLEDGEMENT

STATE OF _____ } SS
COUNTY OF _____ }

The foregoing instrument was acknowledged before me this ____ day of _____ 2024,
by Brandon Swain, President for 1105 ASHFORD LLC, a Wyoming limited liability company.

My Commission Expires: _____
Notary Public, _____

APPROVALS

Approved by the City of Cheyenne Planning Commission this
____ day of _____ 2024.

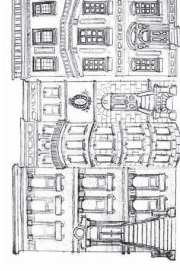
Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this
____ day of _____ 2024.

Mayor _____ Attest: _____ City Clerk

NOTES

1. BASIS OF BEARINGS: WYOMING STATE PLANE COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET. GRID DISTANCES, COMBINATION FACTOR = 0.9996633106.
2. ALL UNMONUMENTED LOT CORNERS, ANGLE POINTS, AND POINTS OF CURVATURE TO BE MONUMENTED WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910" ON ¼ X 24" REBAR.
3. NO PART OF THE LANDS CONTAINED WITHIN THE PLAT BOUNDARY FALL WITHIN A 100-YEAR FEMA SFHA PER F.I.R.M. PANEL No. 56021C11F, DATED JANUARY 17, 2007.



**NORTH
ROW**

A REPLAT OF THE NORTH 132 FEET OF
THE EAST 120 FEET OF THE EAST 190
FEET OF THE SE¼ OF TRACT 36, IN
HILL HEIGHTS ADDITION
CITY OF CHEYENNE,
LARAMIE COUNTY, WYOMING

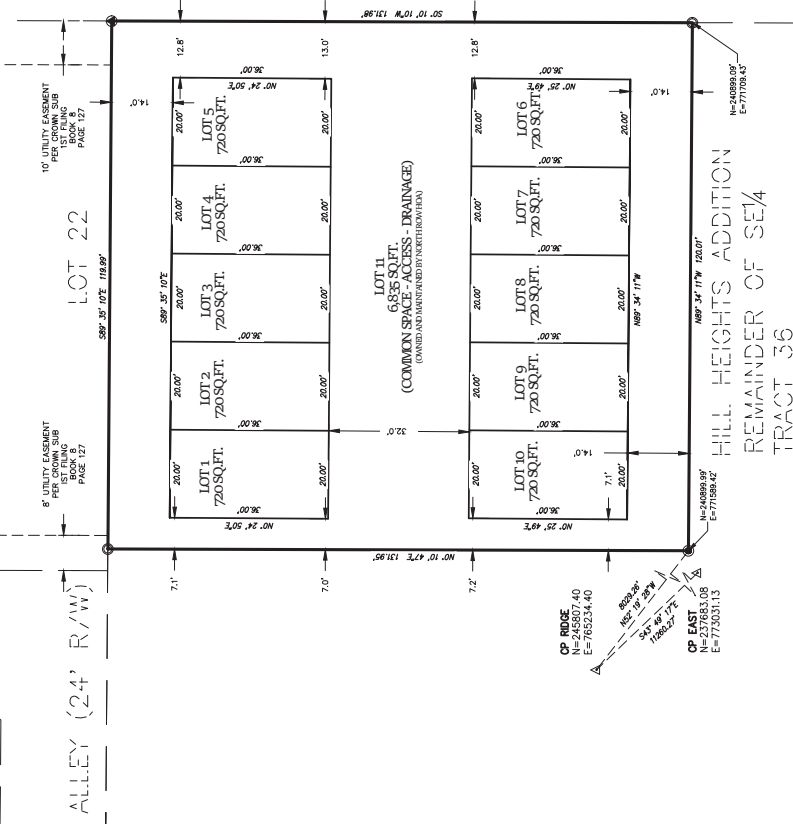
PREPARED SEPTEMBER, 2022



STEEL SURVEYING SERVICES, LLC
PROFESSIONAL LAND SURVEYORS
PLANNING & DEVELOPMENT SPECIALISTS
1105 WEST 1263 ST. CHEYENNE, WY. 82001 • (307) 634-7323
256 GILBERT ST. WHEATLAND, WY. 82201 • (307) 323-8789
www.SteelSurvey.com • info@SteelSurvey.com

REVISD: 2/26/2024
22276 TRACT 36 HILL HEIGHTS REPLAT.DWG

VAN BUREN AVE (80' R/W)



VACATION STATEMENT

IT IS THE INTENT OF THIS REPLAT TO VACATE
THE NORTH 132 FEET OF THE EAST 120 FEET
OF THE SE¼ OF TRACT 36, IN HILL HEIGHTS ADDITION
CITY OF CHEYENNE,
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EXISTING EASEMENTS TO REMAIN

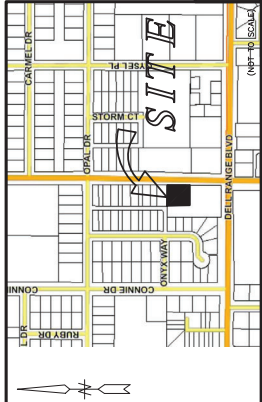
LEGEND

- SET ¾" X 24" LONG REBAR WITH 1½" ALUMINUM CAP STAMPED "SSS P.L.S. 5910"
- FOUND 1½" ALUMINUM CAP STAMPED PLS 5910
- ◆ FOUND 1½" ALUMINUM CAP STAMPED PLS 2500
- ◆ FOUND NAIL

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steel Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision, and that the plat is a true and correct representation of the survey and that the monuments found or set are as shown.

VICINITY MAP



FILING RECORD



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

MARCH 4, 2024

STAFF REPORT

FILE: PUDC-24-4: North Row, Final Plat

REQUEST: A final plat creating 11 lots that include 10 single unit residential lots, and 1 lot for a commons space.

LOCATION: Southeast corner of Dell Range Blvd and Van Buren Ave. Currently addressed 4612 Van Buren Ave

APPLICANT: Brandon Swain

AGENT: Brandon Swain

ZONING: NR-3-High Density

FUTURE LAND USE: UR- Urban Residential

PROPOSED LOTS: 11 lots – 10 single-unit residential (single-family or duplex); 1 lot-used for common Space, access, and drainage

TOTAL AREA: 0.36 Acres

CASE PLANNER: Athen Mores, Planner I - Development



RECOMMENDED MOTION:

Move to recommend the Governing Body **approve** the North Row Final Plat with staff recommended conditions.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.3 Final Plat
- UDC Article 3 Impact Studies
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne

BACKGROUND:

This is a request to final plat 10 single-unit residential lots and 1 lot used for common space, access, and drainage.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of final plat, the Commission must make the following findings required in UDC 2.1.3.d a detailed analysis is below. The purpose of a final plat review is to ensure compliance with the approved preliminary plat and its conditions of approval.

- 1) The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan. (UDC 2.1.3.d.1)**

The layout of the plan is substantial with the approved preliminary plat laying out 10 single unit residential lots and 1 lot (lot 11) used for commons area, access, and drainage. The proposed project is located at 4612 Van Buren Ave. The project is bordered by Van Buren Ave to the east which will be the primary right of way. No changes need to be made to the project property relating to the right of way streets.

The application **complies** with this review criterion.

- 2) The application meets any conditions or modifications of the approved preliminary plat. (UDC 2.1.3.d.2)**

The preliminary plat was approved on March 3, 2023 subject to the following conditions:

1. The following exceptions to are granted:
 - a. Exception to UDC 4.3.3.c, regarding minimum block size and connectivity.
2. Concurrent with final plat submittal:
 - a. Submit a drainage study addressing drainage concerns for this development.
 - b. Demonstrate correct utility provision.
3. Correct the plat as follows:
 - a. Increase the size of the townhome lots to meet minimum size requirements.

- b. Remove the notary for City and have the Mayor and Clerk sign the plat.
- c. Specify ownership for the common lot. You may now proceed to the Final Plat process. Please fulfill the conditions above with the submittal of the Final Plat

Drainage study- The submitted drainage narrative includes conformance with UDC 3.2.2b by including water quality improvements. This proposed conceptual drainage plan would meet UDC criteria for this site. The details of this proposed drainage plan can be worked out with the construction plan submittal on the project.

Utility provision- The final utility layout may require easements to be added to the plat. The applicant is working with the utility companies to determine the placement of the easements. These easements will need to be shown on the plat prior to recording of the plat.

Corrections to plat- All required corrections were made to the satisfaction of City staff.

The application **complies** with this review criterion with conditions.

3) The application meets the purposes, intent, and applicable standards of Article 4. (UDC 2.1.3.d.3)

Transportation Network

Concepts regarding block layout, street design, and access were evaluated with the Preliminary Plat. The realignment of the plat brings blocks closer into compliance with the intent of the block size regulations, although the exceptions for topography, regional transportation routes, and mid-block trail corridors still need to be applied.

Community Facilities and Fees

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. The Final Plat has slightly increased the non-exempt area. The required fees for the 0.36 acres of non-exempt land in this plat are as follows:

Land Acquisition Fee	\$140.00 (\$350 per acre)
Infrastructure Fee	\$140.00 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$280.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Residential Enhancement Fee \$400 per dwelling unit

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Open Space Systems

The open space will be provided with the site plan application for the cottage lot development per UDC Section 6.6.5.

Required Improvements and Engineering Specifications

The final utility layout may require easements to be added to the plat. The applicant is working with the utility companies to determine the placement of the easements. These easements will need to be shown on the plat prior to recording of the plat.

Public Safety Fee

Public Safety Fees are required at \$975.00 per dwelling unit. Per UDC Section 4.6.3.b, Public Safety Fees are payable at the issuance of a building permit for each structure.

The application **complies** with this review criterion with conditions.

STAFF REVIEW:

Through the review process, comments were received regarding the following issues:

1. Ownership common lot.
2. Utility placement.
3. Fulfillment of Preliminary Plat conditions.
4. Block numbering.
5. Clerical items.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.1.3.(d) for Final Plat approval. The Final Plat is consistent with the approved Preliminary Plat. Submittals to Staff have substantially addressed the conditions placed on the Preliminary Plat.

If planning commission is okay with the conditions recommended by Staff, Staff would recommend approval. If the planning commission wants to see those specific easements, then Staff would recommend postponement of this item to the April 1, 2024 meeting.

ALTERNATIVES:

1. Recommend approval of the project as submitted by the applicant. **(Staff Recommendation)**
2. Recommend that the application be approved with specific conditions or modifications, and that a final plat addressing the conditions of approval be prepared and presented to the Governing Body.
3. Recommend that the application be denied based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the project until issues identified during the meeting can be resolved.

STAFF RECOMMENDATION:

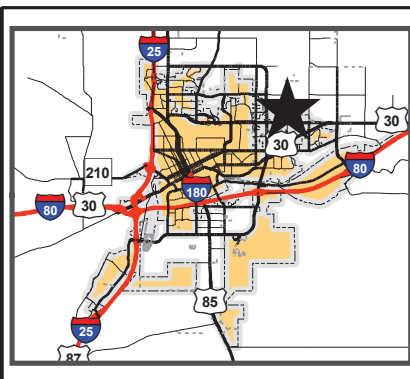
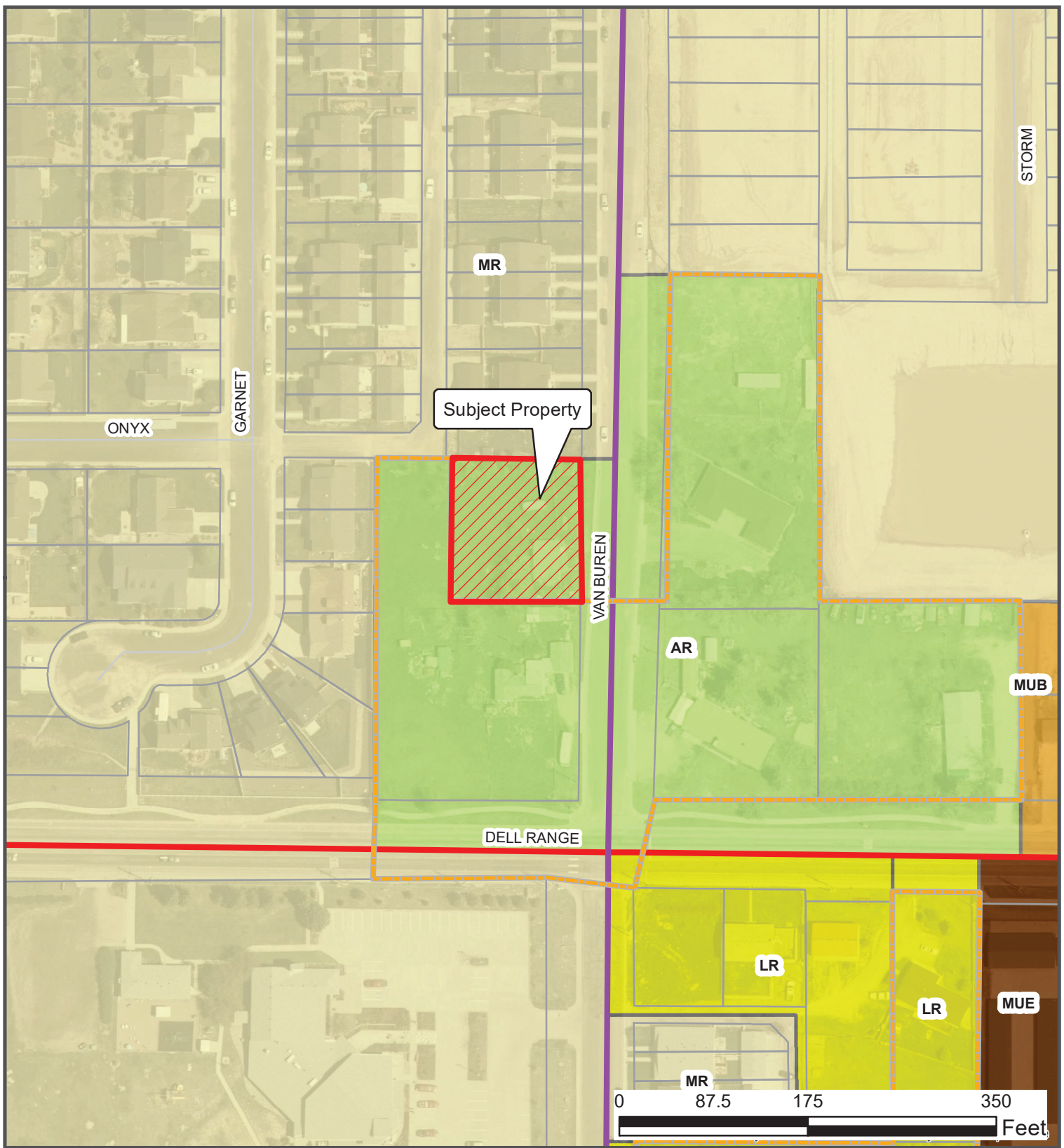
Staff recommends that the Planning Commission recommend the Governing Body **approve** North Row Final Plat with the following conditions:

1. Prior to recording:
 - a) Add utility easements.
 - b) Add Block Number to the Plat.

Should the Planning Commission wish to see the easements prior to approval Staff would recommend postponement of this Final Plat to the April 1, 2024 meeting.

ATTACHMENTS:

1. Zoning
2. Future Land Use Map
3. Application
4. Final Plat

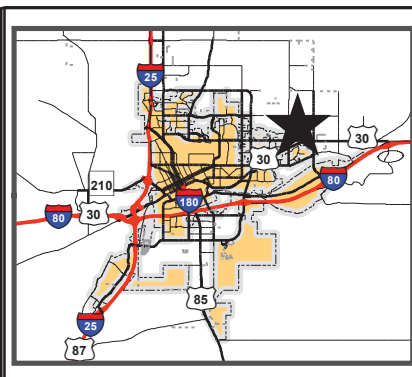
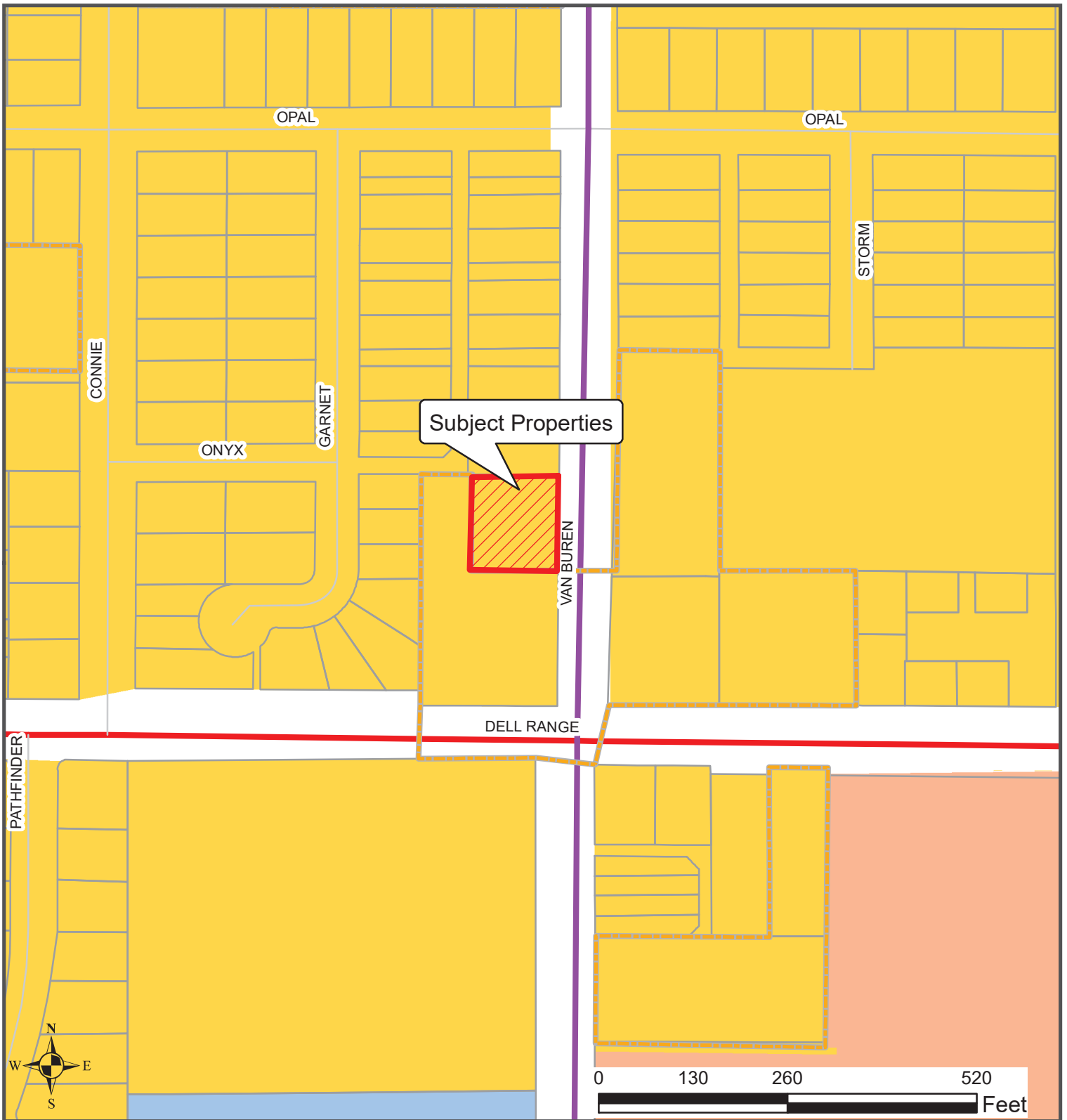


Attachment 1: Zoning Map PUDC-24-4

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-24-4

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

2/26/2024

PUDC-24-4

Plat - Final

Status: Active

Submitted On: 1/10/2024

Primary Location

4612 VAN BUREN AVE

Cheyenne, WY 82009

Owner

1105 ASHFORD LLC

1621 CENTRAL AVE

CHEYENNE, WY 82001

Applicant Brandon Swain 307-214-9634 bswainy23@gmail.com 2856 Deming Blvd
Cheyenne, WY 82001

Application Information

This application has a deadline. The deadline is the second Wednesday of the month. Application Schedule.

Project Name* ?

North Row

Plat Title* ?

North Row

Preliminary Plat Title*

Hill Heights 2nd Filing

Current Subdivision* ?

Hill Heights addition

Project area (acres)*

0.36

Proposed Lots* ?

10

Pre-application Meeting Date

—

Park Fees are due at time of signing of the final plat mylar (see UDC 4.2.5). I acknowledge that this plat may be required to pay plat-level Park Fees.*



Public Improvements are required with platting actions. Please select the option that best demonstrates your intent for the public streets and other infrastructure adjacent to or within the plat boundary.* 

Owner(s) (or developers) behind the plat application will construct the needed infrastructure.

Review Criteria

The following review criteria are found in the UDC regarding a Final Plat. Please acknowledge the proposed plat meets each review criterion by checking the box.

The layout and design of the final plat is in substantial compliance with the approved preliminary plat considering the number of lots or parcels, street and block layout, and access, and any deviations in the final plat brings the application in further compliance with the Comprehensive Plan (2.1.3.d.1).*



The application meets any conditions or modifications of the approved preliminary plat (2.1.3.d.2).*



The application meets the purposes, intent, and applicable standards of Article 4 (2.1.3.d.3).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

✓ Brandon D Swain
Jan 10, 2024

DEDICATION

Know all persons by these presents that: 1105 ASHFORD LLC, a Wyoming limited liability company, owner in fee simple of the North 132 feet of the East 120 feet of the East 190 feet of the SE¼ of Tract 36, in Hill Heights Addition, a subdivision of part of the South Half of Section 23, Township 14 North, Range 66 West of the 6th P.M., in Laramie County, Wyoming.

Has caused the same to be Surveyed, Vacated, and Replatted to be known as, North Row, and does hereby declare the Subdivision of said land as it appears on this plat, to be their free act and deed and in accordance with their desires.

by: Brandon Swain, President for 1105 ASHFORD LLC, a Wyoming limited liability company.

ACKNOWLEDGEMENT

STATE OF _____ }
COUNTY OF _____ } SS

The foregoing instrument was acknowledged before me this ____ day of _____ 2024,
by Brandon Swain, President for 1105 ASHFORD LLC, a Wyoming limited liability company.

My Commission Expires: _____
Notary Public, _____

APPROVALS

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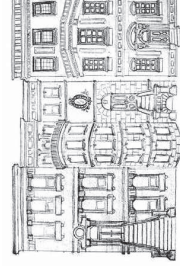
Planning & Development Director, City of Cheyenne, Wyoming

Approved by the Council of the City of Cheyenne, Wyoming this
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Mayor _____ Attest: _____ City Clerk

NOTES

1. BASIS OF BEARINGS: WYOMING STATE PLANE COORDINATES, EAST ZONE, NAD83-2011, US SURVEY FEET. GRID DISTANCES, COMBINATION FACTOR = 0.9996633106.
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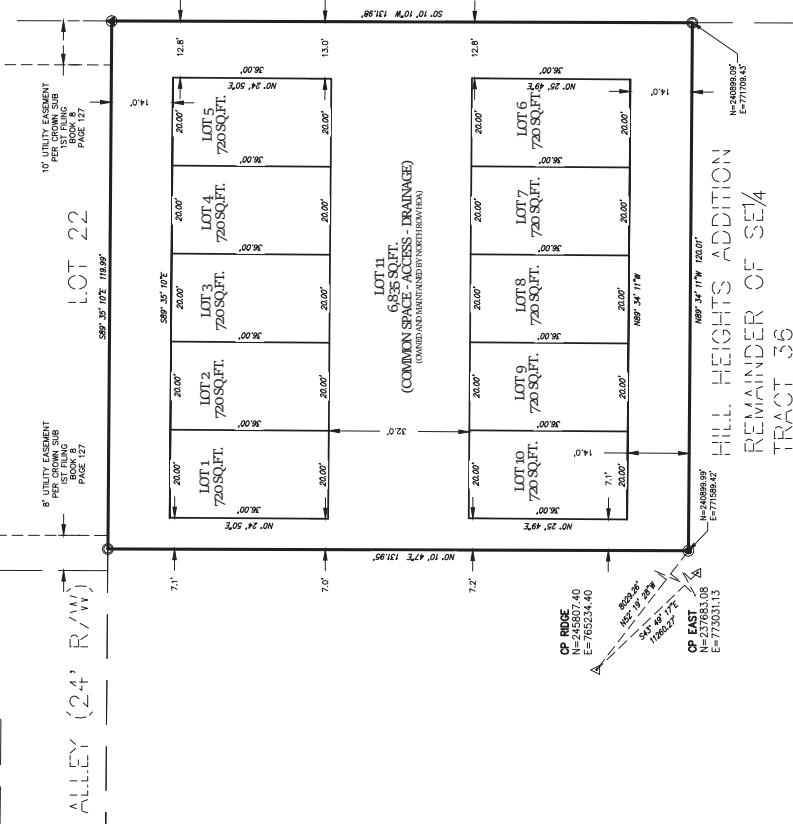
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REVISED: 2/26/2024
22276 TRACT 36 HILL HEIGHTS REPLAT.DWG

VAN BUREN AVE (80' R/W)



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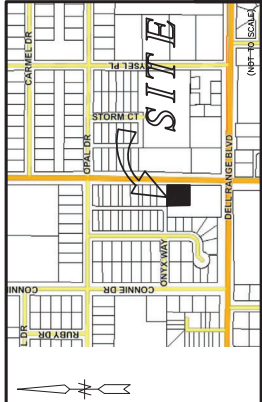
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FILING RECORD